

HOUSE BILL NO. 423

INTRODUCED BY K. LOVE

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING ELECTION LAWS RELATED TO THE MAINTENANCE OF VOTER REGISTRATION LISTS; AMENDING SECTION 13-2-220, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 13-2-220, MCA, is amended to read:

"13-2-220. Maintenance of active and inactive voter registration lists for elections -- rules by secretary of state. (1) The rules adopted by the secretary of state under 13-2-108 must include the following procedures, at least one of which an election administrator shall follow annually:

(a) compare the entire list of registered electors, including electors on the absentee ballot list, against the national change of address files and provide appropriate confirmation notice to those individuals whose addresses have apparently changed;

(b) mail a nonforwardable, first-class, "return if undeliverable--address correction requested" notice to all registered electors, including electors on the absentee ballot list, of each jurisdiction to confirm their addresses and provide the appropriate confirmation notice to those individuals who return the notices;

(c) mail a targeted mailing to electors, including electors on the absentee ballot list, who failed to vote in the preceding federal general election, and to applicants who failed to provide required information on registration forms, ~~and provisionally registered electors~~ by:

(i) sending the list of nonvoters a nonforwardable notice, followed by the appropriate forwardable confirmation notice to those electors who appear to have moved from their addresses of record;

(ii) comparing the list of nonvoters against the national change of address files, followed by the appropriate confirmation notices to those electors who appear to have moved from their addresses of record;

(iii) sending forwardable confirmation notices; or

(iv) making a door-to-door canvass.

(2) (a) Any notices returned as undeliverable to the election administrator or any notices to which the elector fails to respond after the election administrator uses the procedures provided in subsection (1) must be followed within 30 days by an appropriate confirmation notice that is a forwardable, first-class, postage-paid, self-addressed, return notice.

(b) If the elector fails to respond within 30 days of the final confirmation notice, after the 30th day, the election administrator shall move the elector to the inactive list and work with the secretary of state's office and the motor vehicle division in the department of justice to verify the elector's address.

(c) If the election administrator is not able to verify the elector's address, the elector must be placed on the inactive list until they follow the procedure in 13-2-222 or 13-2-304, as applicable.

(3) A procedure used by an election administrator pursuant to this section must be completed at least 90 days before a primary or general election for federal office.

(4) An elector's registration may be reactivated pursuant to 13-2-222 or may be canceled pursuant to 13-2-402.

(5) The secretary of state shall adopt rules to maintain applicants, including REMOVING provisionally registered electors."

NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

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